

Notification, consultation and selection, in the statutory order

PART 1: NOTIFICATION LETTER TO THE LABOUR COMMISSIONER

Send at least four weeks before any intended dismissal. Copy the recognised trade union, or the elected workplace representatives and the affected employees where there is no recognised bargaining agent.

To: The Labour Commissioner

From (employer): _____ Date: _____

Notice of intended dismissals arising from the reduction of the workforce, in terms of section 34 of the Labour Act 11 of 2007.

1. The intended dismissals:

2. The reasons for the reduction of the workforce:

3. The number and categories of employees affected:

4. The date on which the dismissals are intended to take place: _____

Signed: _____ Position: _____

PART 2: CONSULTATION AGENDA

Section 34 requires negotiation in good faith on the following. Minute every meeting.

Topic to negotiate	Covered
Alternatives to dismissal	☐
The criteria for selecting the employees for dismissal	☐
How to minimise the number of dismissals	☐
The conditions on which the dismissals are to take place	☐
How to avert the adverse effects of the dismissals	☐

PART 3: SELECTION CRITERIA MATRIX

Criteria must be agreed, or fair and objective. Set them in advance and apply them consistently.

Criterion	Weight	How it is measured and evidenced

PART 4: THE TIMELINE ON ONE PAGE

Stage	What happens	Timing
Decision to consider reducing	Build the business case and the information pack. Do not announce an outcome.	Before day one
Notification	Inform the Labour Commissioner and the union or elected representatives, with the four prescribed items.	At least 4 weeks before any dismissal
Disclosure and negotiation	Share relevant information and negotiate in good faith on the five statutory topics.	Through the 4 weeks
Agreement, or deadlock	If no agreement, either party may refer the matter to the Labour Commissioner.	Within 1 week of the period ending
Conciliation	The Commissioner appoints a conciliator, who convenes meetings.	Up to 4 weeks from referral
Dismissal	Only once the dispute is settled or otherwise disposed of. Notice and severance then follow.	After the process, not during it

You may not dismiss while the process runs. Failing to comply is an offence: a fine of up to N\$10,000, imprisonment of up to two years, or both.

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General guidance, not legal advice. Every matter turns on its own facts; take advice on your specific situation before you act.